File 19: Georgia Regulatory Licensing & Permits Guide

Blue Ridge Stream Restoration & Mitigation LLC

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Regulatory Target: USACE Savannah District & Georgia DNR EPD Compliance

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■■ Executive Regulatory Summary

Stream mitigation banking and Permittee-Responsible Mitigation (PRM) in Georgia are governed by overlapping federal, state, and local regulatory systems. Because stream restoration physically alters the bed, banks, and protected buffers of state waters, it requires specific professional licenses, environmental permits, and regulatory variances before a single bucket of earth can be moved.
This guide outlines the exact regulatory pipeline, mandatory state certifications, professional contractor licenses, and competitor territorial strategies that Hunter Morris needs to master to establish **Blue Ridge Stream Restoration & Mitigation LLC** as the premier mountain trout geomorphic design-builder in the Southeast.

■ Part 1: Federal Permits (USACE Savannah District & CWA)

Federal jurisdiction is triggered under **Section 404 of the Clean Water Act (CWA)**, which regulates the discharge of dredged or fill material into waters of the United States.

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                      FEDERAL & STATE PERMITTING PIPELINE

     [ CWA 404 Permit ] ■■■> [ 401 Water Quality ] ■■■> [ EPD Buffer Variance ]
      USACE Savannah             Georgia EPD               50-Ft Trout Buffer
      (NWP 27 / IP)            (Certifies 404)             (O.C.G.A. § 12-7-6)
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     [ GSWCC Blue Card ] <■■■ [ NPDES GAR100001 ] <■■■■ [ ES&PC Plan Design ]
       Field Operator            Stormwater Permit           Signed by Level II PE
      (BMP Installer)             (Weekly Monitoring)           (GSWCC Red Card)
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1. Clean Water Act Section 404 Permit

- **The Agency**: U.S. Army Corps of Engineers (USACE) Savannah District (Regulatory Branch Lead: **Justin Hammonds**).
- **Permit Path A: Nationwide Permit 27 (NWP 27)**:
- *Application*: Used for "Aquatic Habitat Restoration, Enhancement, and Establishment Activities" that result in net ecological lift.

- *Advantage*: Highly streamlined, with approvals typically granted in **45 to 90 days** once a Pre-Construction Notification (PCN) is submitted.
- *Constraint*: Can only be used if there is no net loss of aquatic resources.
- **Permit Path B: Standard Individual Permit (IP)**:
- *Application*: Used for commercial mitigation banks or complex projects that do not fit the narrow criteria of NWP 27.
- *Timeline*: **9 to 18 months**, requiring public notice, alternatives analysis (CWA Section 404(b)(1)), and formal Interagency Review Team (IRT) evaluation.

2. Mitigation Banking Instrument (MBI)

- For commercial banks (like the proposed Anderson Creek bank), the USACE Savannah District and the IRT must formally sign off on the **MBI**. This acts as the federal "license" to generate and sell stream mitigation credits.
- It governs credit release schedules (e.g., 15% at MBI signature, 15% at construction completion, and 10-15% annually during the 5-to-7-year monitoring window).

■ Part 2: Georgia State Permits (DNR Environmental Protection Division)

While the federal government governs the stream channel, the State of Georgia regulates water quality, erosion, and riparian buffer zones.

1. Georgia State Stream Buffer Variance

- **The Statute**: O.C.G.A. § 12-7-6(b)(15) for warmwater streams and § 12-7-6(b)(16) for trout waters.
- **The Rule**: Georgia mandates a **25-foot vegetative buffer** along all state waters, which increases to a **50-foot buffer for designated trout waters** (such as the Toccoa, Noontootla, and Anderson Creek).
- **Mandatory Variance**: Because stream restoration requires heavy machinery to reshape banks, install log vanes, and plant native canopy, you *must* apply for and secure a **Stream Buffer Variance** from the Director of the Georgia EPD prior to construction.
- **Staff Reviews**: Handled by the EPD Erosion & Sedimentation Unit (Manager: **Michael Berry**; Staff Reviewer: **Brian Kent**).
- **Mitigation Requirement**: Under EPD rules, buffer variances that cause permanent changes must be mitigated. However, because geomorphic stream restoration represents a *net ecological benefit*, variances for NWP 27 projects are classified under **Category A (Bioengineering/Restoration)** and do not require purchasing offsetting credits.

2. CWA Section 401 Water Quality Certification

- Required for any federal Section 404 Individual Permit.
- The Georgia EPD must certify that the proposed discharge of boulders or logs into the stream will not violate state water quality standards.

3. NPDES General Permit GAR100001 (Stormwater Construction)

- Restoring stream reaches involves disturbing land adjacent to and within state waters.

- If land disturbance exceeds **1 acre**, you must file a Notice of Intent (NOI) for coverage under the NPDES Stormwater General Permit for Stand-Alone Construction Projects.
- **Monitoring**: Requires weekly inspections and turbidity water sampling (in NTUs) upstream and downstream of construction boundaries after rain events.

■■ Part 3: Professional Certifications & Contractor Licenses

To physically execute the work, Hunter Morris must hold specific state credentials or partner with licensed professionals who do.

1. GSWCC Soil & Erosion Control Certifications

The Georgia Soil and Water Conservation Commission (GSWCC) enforces erosion control certifications (known as the "Card System"):

- **Level IA Certification ("Blue Card" - Certified Installer)**:
- *Who Needs It*: All heavy equipment operators, field foremen, and project superintendents physically working in the stream bed or buffer.
- *Purpose*: Ensures that operators understand how to install turbid silt curtains, rock sediment traps, and native vegetative mats.
- *Requirement*: Attend a 1-day course and pass the state exam. **Hunter Morris must obtain his Level IA Blue Card immediately.**
- **Level IB Certification ("Red Card" - Certified Inspector)**:
- *Who Needs It*: The individual conducting the weekly NPDES stormwater inspections and turbidity sampling.
- *Requirement*: 1-day course and state exam.
- **Level II Certification ("Introduction to Design" - Design Professional)**:
- *Who Needs It*: The engineer or hydrologist who designs the Erosion, Sedimentation, and Pollution Control (ES&PC) plan.
- *Requirement*: Must be a registered Professional Engineer (PE), Landscape Architect, or Certified Professional in Erosion and Sediment Control (CPESC).

2. Georgia Professional Engineer (PE) License

- All hydrologic and hydraulic models (such as **HEC-RAS 2D** backwater models demonstrating "no-rise" in the local floodway) and structural engineering drawings for heavy bridges, culverts, or massive structural boulder cascades must be signed and stamped by a licensed Georgia Professional Engineer (PE).
- *Hunter's Action*: Blue Ridge Stream will contract with a licensed PE for structural stamps, while Hunter manages the geomorphic field design and execution.

3. Georgia Commercial General Contractor License

- Under O.C.G.A. § 43-41, performing commercial utility or civil grading contracting in Georgia for projects exceeding **$2,500** requires a state-licensed General Contractor.
- *Hunter's Action*: Partner with a licensed local grading contractor (like John's Mountain Grading) or obtain a commercial GC license (Residential-Light Commercial tier) for the firm.

4. Georgia Utility Contractor License

- If a stream restoration overlaps municipal water or sewer utility easements (e.g., realigning a stream away from a vulnerable sewer trunk line), the contractor must hold a Georgia Utility Contractor License.

Part 4: Competitor Spatial Territories & Geographic Gaps

To beat major players like **Resource Environmental Solutions (RES)** and **Corblu Ecology Group**, Hunter must target their geographic and operational weaknesses:

Competitor	Core Basin Focus	Strengths	Major Weakness / Geographic Gap	Hunter's Counter-Play
RES	Piedmont & Coastal Basins (Upper Chattahoochee, Upper Oconee)	Deep PE capital backing; holds massive DOT contracts.	Avoids high-gradient mountain reaches due to high logistical mobilization costs for massive excavator fleets.	**Dominate the Blue Ridge Mountains**: Target 1,000–3,000 LF high-gradient trout reaches where RES's large overhead makes them non-competitive.
Corblu Ecology Group	Etowah, Coosa, & Metro Atlanta Basins	Trusted by local developers and Savannah District USACE.	Lacks in-house heavy earthworks grading fleets; subcontracts out all field construction.	**Design-Build Agility**: Offer landowners a single, unified point of contact from Rosgen design to physical boulder placement, keeping margins high.
Westervelt (WES)	Ocmulgee, Oconee, & Altamaha Basins	Large timberland conversions; excellent biological assets.	Focuses almost exclusively on low-gradient warmwater wetland banking; lacks coldwater trout expertise.	**Boutique Trout Showrooms**: Focus on private high-end mountain cabin estates requiring specialized geomorphic pools, woody cover, and hemlock shade.

Hunter's Strategic Siting Target: The Coosa Basin

The **Coosa River Basin (HUC 03150102)**—encompassing the **Toccoa/Ocoee, Ellijay, Cartecay, and Fightingtown Creek** watersheds—represents a goldmine for Hunter:

1. **High Siltation / High Uplift**: Decades of logging and unpaved USFS roads have choked mountain trout streams with sand. This means baseline conditions are highly degraded, allowing Hunter to demonstrate massive **ecological lift** and generate maximum stream credit factors under the Savannah District SOP.
2. **High-Value Private Landowners**: The area is densely packed with high-end trout estate cabins (Roya's Cabin, Mike Irby, Jeff Fuqua). These owners are eager to fund bioengineered restorations that protect their shorelines and create private trophy trout showrooms.